2

1876, Swaraj

These were the reasons why, when it came to Punjab, the colonial state wished to develop an expanding commercial society there in the context of a world economy. To succeed, however, it had to locate such activity in an indigenous political base. The result was that while to the public the legal system seemed intent on enforcing modern commercial transactions, privately it shored up age-old traditional structures. In the public realm, the law drew upon commercial and criminal law principles that were inherently British. In the private realm, the indigenous status of landholders still prevailed. This is how the dichotomy between ‘modern’ public law and ‘traditional’ private law arose in British India. It linked the state with rural intermediaries. Customary law was given primacy for this reason over religious law. The paternalistic system of imperial rule had already earlier seen the passage of the Punjab Laws Act 1872. Under this, the personal law of an individual was no longer to be found in Islamic law or a Hindu religious framework. It was to be rooted rather in tribal customary law, which differed from religious law in crucial areas of inheritance. Whereas under Islamic sharia law female rights would have been more generous than under customary tribal law, the British preference for the latter was intended to free it from a religious system, which would have excluded Christian claimants as outsiders.[1] The colonial state was in this way able to strengthen its authority, because it could augment the pattern of rural social organization through a rationalization of the applicable laws. As a result, land transfer policy, canal colonization policy and the development of a system of colonial law in Punjab ‘triumphed unequivocally’ in tying Punjab’s agricultural economy into the world market, so that ‘a laissez-faire